

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600364	ROJAS VS SWEEPING CORPORATION OF AMERICA, LLC	MOTION FOR ORDER TO DEEM MATTERS ADMITTED REQUEST FOR ADMISSIONS, SET ONE TO DEFENDANT BRIAN CARLTON SIMMONS BY ISMAEL ROJAS

Tentative Ruling: The Court GRANTS Plaintiff's unopposed Motion to for an Order to Deem Matters Admitted, Set One. Each Request in Requests for Admission, Set One, is deemed admitted and all objections thereto waived. Further, Defendant shall pay sanctions in the amount of \$380 (.8 x \$400 + \$60) within thirty days of this Order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602517	DIAZ VS UNITED FINANCIAL CASUALTY INSURANCE COMPANY, AN OHIO CORPORATION DBA PROGRESSIVE	PETITION TO COMPEL ARBITRATION

Tentative Ruling: The Court OVERRULES the Plaintiff's evidentiary objections, GRANTS the motion to compel arbitration, and STAYS the remaining claims not subject to arbitration.

Defendant contends that the FAA, 9 U.S.C. §§ 1 et. seq., applies. The FAA generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Furthermore, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the arbitration clause in the policy does not reference the FAA, nor does Defendant provide any evidence that the underlying transaction involved interstate commerce. The moving papers merely conclude that the FAA "...governs this dispute at issue." But without support for this assertion, the FAA does not apply.

A. Existence of an Arbitration Agreement

The California Arbitration Act requires the existence of a valid arbitration agreement, before arbitration can be compelled. (CCP § 1281.2) The party seeking to compel arbitration has the burden of proving the existence of such an agreement by a